

# An Act

ENROLLED HOUSE  
BILL NO. 3464

By: Boles, Chapman, and  
Dobrinski of the House

and

Paxton and Green of the  
Senate

An Act relating to energy; creating the Oklahoma Energy Storage Resource Safety Act; stating legislative intent; defining terms; requiring energy storage resources comply with certain safety codes and standards; providing for resolution if conflict exists; limiting application for certain energy storage resources; authorizing requirement for certain written report; listing required contents of written report; requiring certain cooperation; requiring certain information be provided; requiring the curing of noncompliance before commencement of operations; requiring certain energy storage resource to have emergency operations plan; listing requirements of emergency operations plan; requiring submission of emergency operations plan; requiring the offering of certain training to local first responders; listing requirements of training; prohibiting certain actions by political subdivisions; requiring certain agreements contain decommissioning provisions; requiring landowner make certain timely requests for grantee compliance; stating certain applicability; requiring certain financial assurance be delivered; stating acceptable forms of financial assurance; requiring certain amount of financial assurance; providing agreement contain certain provisions; detailing agreement provision requirements; assigning certain costs to grantee; prohibiting certain cancellation of financial assurance; making certain agreement provisions void; providing for certain injunctive relief; establishing fees for review and permitting certain facilities by the Office of the Oklahoma State Fire Marshal; limiting the amount of collected

fees; providing for distribution of collected fees; requiring completion of certain report as soon as practicable; requiring the State Fire Marshal Commission to adopt certain rules; requiring fees and timing to continue to conform if certain delegation occurs; limiting application of act to certain facilities; creating the Oklahoma Solar Energy Development Act; stating legislative findings; requiring owners of solar energy facilities to provide certain statement to landowners; listing minimum requirements of statements; authorizing certain landowners the right to inspect records to verify payments; requiring certain records be made available; detailing the procedure for providing records; requiring the annual reporting of generation, nameplate capacity, and facility location to the Oklahoma Corporation Commission; requiring the keeping of liability insurance policy prior to commencement of construction; requiring landowner be added as additional insured to policy; requiring certain evidence of policy be submitted to landowner; requiring certain notice; requiring submission of a notification of intent to build; requiring Corporation Commission prescribe form and submission requirements; listing certain required information; requiring certain notification to board of county commissioners or municipality; requiring publication of certain notice by certain date; requiring copies of notice be sent to certain specified parties; requiring an affidavit in certain situations; requiring the holding of a public meeting; requiring notice of public meeting be published and submitted; listing requirements of public meeting notice; requiring certain notice to surface estate owner; requiring certain provided information be confidential and proprietary; requiring parties take certain actions; stating confidentiality provisions shall not be limited by certain agreements; providing for certain penalties; listing requirements of notice to surface estate; prohibiting commencement of construction until all notification requirements are satisfied; requiring notification to Corporation Commission that certain requirements have been met; providing for certain penalty; stating requirements shall only apply to certain facilities; requiring

submission of certain site plans to the Office of the Oklahoma State Fire Marshal at certain time; listing requirements to be included in site plan; limiting review of the Office of the Oklahoma State Fire Marshal; requiring review be completed as soon as practicable; allowing certain on-site actions to proceed during review period; authorizing assessment of certain fee; limiting the amount of collected fee; providing for fee distribution; providing for application to certain facilities; requiring compliance with certain act; requiring submission of certain evidence of financial assurance; providing for certain calculations of financial assurance; requiring financial assurance be certain percentage of decommissioning estimate; authorizing Corporation Commission to promulgate certain rules; granting certain exclusive jurisdiction; providing for codification; providing an effective date; and declaring an emergency.

SUBJECT: Energy

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 180.14 of Title 17, unless there is created a duplication in numbering, reads as follows:

Sections 1 through 8 of this act shall be known and may be cited as the "Oklahoma Energy Storage Resource Safety Act".

SECTION 2. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 180.15 of Title 17, unless there is created a duplication in numbering, reads as follows:

The Legislature finds that:

1. To protect the citizens of Oklahoma, energy storage resources shall satisfy safety codes and standards; and

2. This act is intended to help Oklahoma secure the benefits of energy storage resources to provide electric grid reliability.

SECTION 3. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 180.16 of Title 17, unless there is created a duplication in numbering, reads as follows:

As used in the Oklahoma Energy Storage Resource Safety Act:

1. "Commencement of operations" means the date on which an energy storage resource first delivers electricity to the grid in an amount sufficient for commercial sale or use off-site from the energy storage resource, but shall not include amounts of electrical energy used only for the maintenance or testing of the energy storage resource or related equipment;

2. "Energy storage resource" means a resource capable of receiving electric energy from the electrical grid, or from a generation source with which it is associated, and storing such electric energy for later injection into the electrical grid;

3. "Energy storage resource agreement" means a lease agreement between a grantee and a landowner that authorizes the grantee to operate an energy storage resource on the leased property;

4. "Grantee" means a person, other than an electric utility who:

- a. leases property from a landowner, and
- b. operates an energy storage resource on the property; and

5. "Resource owner" means the entity having a majority equity interest in the energy storage resource, including its respective successors and assigns.

SECTION 4. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 180.17 of Title 17, unless there is created a duplication in numbering, reads as follows:

A. An energy storage resource shall comply with the following minimum safety codes and standards for energy storage resource equipment or facilities:

1. The International Fire Code (IFC), as adopted and amended by the Oklahoma Uniform Building Code Commission, in effect at the time a construction permit is applied for; and

2. Criteria described in the National Fire Protection Association (NFPA) 855 2026 Standard for the Installation of Stationary Energy Storage Systems.

Where a conflict exists between the requirements of the IFC, as adopted and amended by the Oklahoma Uniform Building Code Commission, and the NFPA 855 2026 edition, the provisions of the NFPA 855 2026 edition shall take precedence. For an energy storage resource with a nameplate capacity equal to or less than one (1) megawatt, only the provisions of this subsection shall apply.

B. Before a construction permit is issued for an energy storage resource, the entity responsible for fire inspection and primary emergency response may require the resource owner to pay for an independent, third-party engineer licensed in this state or other consultant with appropriate expertise, to provide a written report to the entity responsible for fire inspection and primary emergency response and the resource owner determining:

1. Whether the energy storage resource, as proposed, complies with subsection A of this section; and

2. To the extent the energy storage resource does not comply with subsection A of this section, any appropriate actions to cure such noncompliance in accordance with the NFPA 855 2026 edition.

C. Any resource owner that receives a lawful request pursuant to subsection B of this section shall cooperate with the request. Such cooperation shall include providing the engineer or consultant with all necessary documents relating to the energy storage resource's site layout, emergency operations plan, hazard mitigation analysis, manufacturer specifications, product listings, including, but not limited to, UL 9540 and UL 9540A reports, compliance with the NFPA 855 2026 edition and other applicable referenced standards, electrical drawings, monitoring procedures, and fire protection system, as applicable to the proposed energy storage resource. If the engineer or consultant identifies appropriate actions to cure noncompliance under paragraph 2 of subsection B of this section, the resource owner shall implement said appropriate actions before commencement of operations.

D. Energy storage resources, other than energy storage systems installed in one- and two-family dwellings as defined in the NFPA 855 2026 edition, in this state shall have and maintain, at an on-

site location accessible to local first responders, a site-specific emergency operations plan. In accordance with the NFPA 855 2026 edition, the site-specific emergency operations plan shall identify:

1. Potential risks and hazards specific to the site;
2. Hazard mitigation measures;
3. Procedures for the safe shutdown, de-energizing, or isolation of equipment and systems under emergency conditions, including emergency procedures to be followed in case of fire;
4. Procedures for handling equipment damaged in a fire or other emergency event;
5. Procedures and schedules for conducting drills using the procedures listed under this subsection and documentation related to the performance of the drills;
6. Procedures for communication between the operator of the energy storage resource and first responders, including procedures that facilitate communication between first responders and emergency contacts for the resource operator; and
7. Emergency operations protocols to ensure safety during critical events, including protocols that provide for the safety of nearby residents, neighboring properties, and first responders.

E. Before commencement of operations, the resource owner shall provide the site-specific emergency operations plan to the entity responsible for fire inspection and primary emergency response.

F. Energy storage resource owners in this state shall offer to local first responders, at no cost to the responders, education and training regarding responding to an equipment failure incident at the energy storage resource site. The training shall include:

1. Training on specific characteristics of the energy storage resource technology;
2. Training on protecting first responders during incident response;
3. Training on hazards commonly associated with incident response;

4. Training on incident response protocols, including an overview of the site-specific emergency operations plan developed under subsection D of this section; and

5. An on-site review of the perimeter, major equipment, and ingress and egress to the energy storage resource site.

G. Unless expressly authorized by law, political subdivisions in this state shall not adopt, enforce, or maintain any rules, regulations, codes, or standards that uniquely apply to energy storage resources other than those set forth in the Oklahoma Energy Storage Resource Safety Act.

SECTION 5. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 180.18 of Title 17, unless there is created a duplication in numbering, reads as follows:

A. An energy storage resource agreement executed after the effective date of this act shall provide that the grantee is responsible for removing the grantee's components of an energy storage resource facility from the landowner's property and that the grantee shall, in accordance with any other applicable laws or regulations, safely perform the following:

1. Clear, clean, and remove from the property each energy storage resource and associated transformers and substations;

2. For each foundation of an energy storage resource, transformer, or substation installed in the ground:

- a. clear, clean, and remove the foundation from the ground to a depth of at least three (3) feet below the surface grade of the land in which the foundation is installed, and
- b. ensure that each hole or cavity created in the ground by the removal is filled with soil of the same type or a similar type as the predominant soil found on the property;

3. For each buried cable, including power, fiber-optic, and communications cables, installed in the ground:

- a. clear, clean, and remove the cable from the ground to a depth of at least three (3) feet below the surface grade of the land in which the cable is installed, and
- b. ensure that each hole or cavity created in the ground by the removal is filled with soil of the same type or a similar type as the predominant soil found on the property; and

4. Clear, clean, and remove from the property each overhead power or communications line installed by the grantee on the property at the request of the landowner.

B. The agreement shall provide that, at the request of the landowner, the grantee shall:

1. Clear, clean, and remove each road constructed by the grantee on the property; and

2. Ensure that each hole or cavity created in the ground by the removal is filled with soil of the same type or a similar type as the predominant soil found on the property.

C. The agreement shall provide that, at the request of the landowner, if reasonable, the grantee shall:

1. Remove from the property all rocks over twelve (12) inches in diameter excavated during the decommissioning or removal process;

2. Return the property to a tillable state using scarification, V-rip, or disc methods, as appropriate; and

3. Ensure that:

- a. each hole or cavity created in the ground by the removal is filled with soil of the same type or a similar type as the predominant soil found on the property, and
- b. the surface is returned as near as reasonably possible to the same condition as before the grantee dug holes or cavities, including by reseeding pastureland with native grasses prescribed by an appropriate governmental agency, if any. Noninvasive grasses



shall be allowed when reseeding native grasses is not economically feasible.

D. The landowner shall make a request under subsection B or C of this section not later than the one hundred eightieth day after the later of:

1. The date on which the landowner receives from the grantee via certified mail a copy of a notification of intent to suspend operations filed with a grid operator indicating an intent to permanently cease operations; or

2. The date the landowner receives written notice of intent to decommission the energy storage resource from the grantee.

E. The provisions of this section shall only apply to energy storage resource agreements executed after the effective date of this act and shall have no effect on existing agreements.

SECTION 6. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 180.19 of Title 17, unless there is created a duplication in numbering, reads as follows:

A. An energy storage resource agreement executed after the effective date of this act shall provide that the grantee obtain and deliver to the landowner evidence of financial assurance that conforms to the requirements of this section to secure the performance of the grantee's obligation to remove the grantee's energy storage resource facilities located on the landowner's property as described by Section 5 of this act. Acceptable forms of financial assurance include a parent company guaranty with a minimum investment grade credit rating for the parent company issued by a major domestic credit rating agency, a letter of credit, a bond, or another form of financial assurance reasonably acceptable to the landowner.

B. The amount of the financial assurance shall be at least equal to the estimated amount by which the cost of removing the energy storage resource facilities from the landowner's property and restoring the property to as near as reasonably possible the condition of the property as of the date the agreement begins exceeds the salvage value of the facilities, less any portion of the value of the facilities pledged to secure outstanding debt.

C. The agreement shall provide that:

1. The estimated cost of removing the energy storage resource facilities from the landowner's property and restoring the property to as near as reasonably possible the condition of the property as of the date the agreement begins, and the estimated salvage value of the energy storage resource facilities, shall be determined by an independent, third-party professional engineer licensed in this state;

2. The grantee shall deliver to the landowner an updated estimate, prepared by an independent, third-party professional engineer licensed in this state, of the cost of removal and the salvage value:

- a. on or before the tenth anniversary of commencement of operations of the energy storage resource facility, and
- b. at least once every five (5) years thereafter for the remainder of the term of the agreement; and

3. The grantee is responsible for ensuring that the amount of the financial assurance remains sufficient to cover the amount required by subsection B of this section, consistent with the estimates required by this subsection.

D. The grantee is responsible for the costs of obtaining financial assurance described by this section and costs of determining the estimated removal costs and salvage value.

E. The agreement shall provide that, if the grantee fails to fulfill the scope of decommissioning and removal work specified in the agreement, the grantee shall deliver the financial assurance not later than the earlier of:

1. The date the energy storage resource agreement is terminated; or

2. The twentieth anniversary of the commencement of operations of the energy storage resources located on the landowner's property, unless the term of the agreement is extended.

F. The grantee may not cancel financial assurance before the date the grantee has completed the grantee's obligation to remove the grantee's energy storage resource facilities located on the

landowner's property in the manner provided by this act, unless the grantee provides the landowner with replacement financial assurance at the time of or before the cancellation. In the event of a transfer of ownership of the grantee's energy storage resource facilities, the financial security provided by the grantee shall remain in place until the date evidence of replacement financial security meeting the requirements of this act is provided to the landowner by the transferee.

G. The provisions of this section shall only apply to energy storage resource agreements executed after the effective date of this act and shall have no effect on existing agreements.

SECTION 7. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 180.20 of Title 17, unless there is created a duplication in numbering, reads as follows:

A. A provision of an energy storage resource agreement executed after the effective date of the Oklahoma Energy Storage Resource Safety Act that purports to waive a right or exempt a grantee from a liability or duty established under the Oklahoma Energy Storage Resource Safety Act is void and unenforceable, but the remainder of the agreement shall remain enforceable.

B. A resource owner shall comply with the decommissioning obligations set forth in the Oklahoma Energy Storage Resource Safety Act. A landowner subject to an energy storage resource agreement is expressly authorized to bring an action in district court for injunctive relief to enforce compliance with this act.

C. The provisions of this section are not exclusive. The remedies provided in this section are in addition to any other procedures or remedies provided by other law. Failure to comply with the Oklahoma Energy Storage Resource Safety Act does not impair the validity or enforceability of any lease, easement, mortgage, deed of trust, or other interest in real property.

SECTION 8. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 180.21 of Title 17, unless there is created a duplication in numbering, reads as follows:

A. For energy storage resource facilities located in areas where no recognized local authority having jurisdiction exists, and where, as a result, any component of an energy storage resource facility or the energy storage resource facility itself is subject

to inspections, plan reviews, or permits from the Office of the Oklahoma State Fire Marshal, as provided in the codes adopted by the Oklahoma Uniform Building Code Commission, the State Fire Marshal Commission may establish a fee rate of no more than six cents (\$0.06) per square foot of surface physically occupied aboveground by energy storage resource facility infrastructure. Such fee shall be inclusive of all inspections, plan reviews, permit issuance, and other review actions undertaken by the Office of the Oklahoma State Fire Marshal in connection with the project, and the total fee shall not exceed Five Hundred Thousand Dollars (\$500,000.00) for any individual energy storage resource facility. Nothing in this section shall be construed to authorize the collection of fees beyond said amount, except as otherwise provided by law. Where a recognized local authority having jurisdiction exists, such local authority is subject to the same fee limitations as the Office of the Oklahoma State Fire Marshal established in this subsection.

B. Any fees collected pursuant to subsection A of this section shall be distributed as follows:

1. Seventy-five percent (75%) of such fees shall be distributed to the local fire department providing primary fire protection services to the jurisdiction where the facility is located, within sixty (60) days of receipt. Funds distributed under this paragraph shall be used solely for fire protection, fire prevention, inspections, training, or emergency response activities related to the facility; and

2. Twenty-five percent (25%) of such fees shall be distributed to the permit issuing authority, whether the Office of the Oklahoma State Fire Marshal or a recognized local authority having jurisdiction, if delegated.

C. For purposes of this section, "recognized local authority having jurisdiction" means a city, town, college, county, or fire protection district that has been recognized by the Office of the Oklahoma State Fire Marshal as the authority having jurisdiction for permits, inspections, and enforcement under the adopted codes.

D. The Office of the Oklahoma State Fire Marshal or a local authority having jurisdiction, where applicable, shall complete any review subject to subsection A of this section as soon as practicable, and in no event later than thirty (30) calendar days following receipt of complete site plans. In the event the Office of the Oklahoma State Fire Marshal does not complete its review

within thirty (30) calendar days, any applicable permits and certificates shall be deemed issued.

E. The State Fire Marshal Commission shall adopt rules as necessary to implement the provisions of this section, pursuant to Section 324.9 of Title 74 of the Oklahoma Statutes, including, but not limited to, fee collection and distributions.

SECTION 9. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 160.24 of Title 17, unless there is created a duplication in numbering, reads as follows:

A. To the extent required by law, for wind energy facilities located in areas where no recognized local authority having jurisdiction exists, and where, as a result, any component of a wind energy facility or the wind energy facility itself is subject to inspections, plan reviews, or permits from the Office of the Oklahoma State Fire Marshal, as provided in the codes adopted by the Oklahoma Uniform Building Code Commission, the State Fire Marshal Commission may establish a fee rate of no more than six cents (\$0.06) per square foot of surface physically occupied aboveground by wind energy facility's occupiable operations and maintenance buildings. Such fee shall be inclusive of all inspections, plan reviews, permit issuance, and other review actions undertaken by the Office of the Oklahoma State Fire Marshal in connection with the project, and the total fee shall not exceed Five Hundred Thousand Dollars (\$500,000.00) for any individual wind energy facility. Nothing in this section shall be construed to authorize the collection of fees beyond said amount, except as otherwise provided by law. Where a recognized local authority having jurisdiction exists, such local authority is subject to the same fee limitations as the Office of the Oklahoma State Fire Marshal established in this subsection.

B. Any fees collected pursuant to subsection A of this section shall be distributed as follows:

1. Seventy-five percent (75%) of such fees shall be distributed to the local fire department providing primary fire protection services to the jurisdiction where the facility is located, within sixty (60) days of receipt. Funds distributed under this paragraph shall be used solely for fire protection, fire prevention, inspections, training, or emergency response activities related to the facility; and

2. Twenty-five percent (25%) of such fees shall be distributed to the permit issuing authority, whether the Office of the Oklahoma State Fire Marshal or a recognized local authority having jurisdiction, if delegated.

C. For purposes of this section, "recognized local authority having jurisdiction" means a city, town, college, county, or fire protection district that has been recognized by the Office of the Oklahoma State Fire Marshal as the authority having jurisdiction for permits, inspections, and enforcement under the adopted codes.

D. The Office of the Oklahoma State Fire Marshal or a local authority having jurisdiction, where applicable, shall complete any review subject to subsection A of this section as soon as practicable, but in no event later than thirty (30) calendar days following receipt of complete site plans. In the event the Office of the Oklahoma State Fire Marshal does not complete its review within thirty (30) calendar days, any applicable permits and certificates shall be deemed issued.

E. The State Fire Marshal Commission shall adopt rules as necessary to implement the provisions of this section, pursuant to Section 324.9 of Title 74 of the Oklahoma Statutes, including, but not limited to, fee collection and distributions.

F. If the Office of the Oklahoma State Fire Marshal delegates any site plan review, permitting, or similar authority over a wind energy facility to a recognized local authority having jurisdiction, fees and timing shall continue to conform to the subsections of this section.

G. The provisions of this section shall not apply to any facilities that commenced construction before the effective date of this act, including any subsequent maintenance, repairs, modifications, or other work on, or repower of, existing facilities.

SECTION 10. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 809 of Title 17, unless there is created a duplication in numbering, reads as follows:

Sections 10 through 20 of this act shall be known and may be cited as the "Oklahoma Solar Energy Development Act".

SECTION 11. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 809.1 of Title 17, unless there is created a duplication in numbering, reads as follows:

The Legislature finds that the prudent development of solar energy resources requires assurances that the rights of private landowners should be protected, that such landowners have access to adequate information to verify the accuracy of their payments, among other protections, and that public and mineral interest operators receive sufficient notice of planned developments.

SECTION 12. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 809.2 of Title 17, unless there is created a duplication in numbering, reads as follows:

As used in the Oklahoma Solar Energy Development Act:

1. "Commencement of construction" means the date on which the owner or developer of a solar energy facility installs a post or posts into the ground for panel or inverter foundations. The term shall not include environmental assessments, surveys, preliminary engineering, site preparation, or other activities associated with assessment of development of the solar resources on a given parcel of property;

2. "Facility" means a solar energy facility;

3. "Owner" means the entity having a majority equity interest in a solar energy facility, including its respective successors and assigns;

4. "Racking system" means the permanent structural framework, including foundations, piles, mounts, or tracking equipment that is designed to support, anchor, and orient photovoltaic modules or related solar-energy-producing equipment at a solar energy facility and that is integral to the facility's ability to generate electricity;

5. "Solar energy facility" means an electric-generating facility using photovoltaic or solar-thermal technologies with a nameplate capacity greater than one (1) megawatt alternating current (AC), designed to deliver energy to the electric grid and not primarily to on-site load, unless otherwise specified by state law; and

6. "Working interest" means the interest in a well or the interest in a unit created by order of the Corporation Commission that entitles the oil and gas lessee, or the lessee's successor or assign, to drill for and produce oil and gas.

SECTION 13. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 809.3 of Title 17, unless there is created a duplication in numbering, reads as follows:

For landowners who are paid based on the amount of electrical energy produced from the conversion of solar energy, the owner of any solar energy facility shall provide a statement within ten (10) business days of the payment to the landowner in consideration for the use of the property of the landowner to generate electrical energy. The statement shall provide, at a minimum, information reasonably necessary to assist the landowner in understanding the basis for the payment to the landowner and a means of confirming its accuracy.

SECTION 14. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 809.4 of Title 17, unless there is created a duplication in numbering, reads as follows:

A. Any landowner who has, through a lease, easement, or other arrangement, allowed a solar energy facility foundation or racking system to be placed on the property of the landowner and who is paid based on the amount of electrical energy produced from the conversion of solar energy shall have the right to inspect the records of the owner of the solar energy facility for the purpose of confirming the accuracy of any payments made to the landowner within the past twenty-four (24) months.

B. The owner of any solar energy facility, any portion of which is located in this state, upon request of a landowner with the right to inspect records as set forth in subsection A of this section, shall make available, within a reasonable time, all records, documents, data, and other information, or copies thereof, as are necessary for a landowner to conduct the inspection specified in subsection A of this section. The records shall be made available within the confines of this state and in a location and manner that affords a landowner reasonable access to the records during normal business hours. The landowner shall be permitted one request per calendar year and be afforded a reasonable length of time to complete the inspection but shall not cause undue disruption to the operations of the owner during the inspection. The records shall be



subject to the confidentiality requirements contained in the respective landowner lease agreement.

SECTION 15. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 809.5 of Title 17, unless there is created a duplication in numbering, reads as follows:

A. The owner of any solar energy facility shall report to the Oklahoma Corporation Commission the electrical energy generated by the solar energy facility, the nameplate capacity of the solar energy facility, and the location of the solar energy facility.

B. If a solar energy facility contains generating units with different nameplate capacities, the information required in subsection A of this section shall be reported separately for each nameplate capacity.

C. The information required by this section shall be reported on an annual basis, with the information due not later than March 1 of each calendar year.

SECTION 16. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 809.6 of Title 17, unless there is created a duplication in numbering, reads as follows:

A. Prior to commencing construction of a solar energy facility, the owner of the solar energy facility shall obtain and keep in effect either:

1. A commercial general liability insurance policy with coverage limits consistent with prevailing industry standards; or

2. A combination of self-insurance and excess liability insurance.

B. The owner shall cause the owner of the land on which the solar energy facility is located to be named as an additional insured under the policy.

C. The owner shall deliver to the landowner a certificate of insurance evidencing the policy. The landowner shall be given not less than thirty (30) days prior written notice of any material modification, cancellation, or termination of the insurance policy.

SECTION 17. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 809.7 of Title 17, unless there is created a duplication in numbering, reads as follows:

A. The owner of a solar energy facility shall submit a notification of intent to build a facility to the Oklahoma Corporation Commission at least six (6) months before the commencement of construction, as defined in Section 12 of this act. The Corporation Commission shall prescribe the form and submittal requirements of the notification; provided, the information required on the notification form shall include a description of the facility, the nameplate capacity, the general location of the facility, and a map of the project boundary.

The owner of the solar energy facility shall send copies of the notification to the board of county commissioners of every county in which all or a portion of the solar energy facility is to be located within twenty-four (24) hours of filing said notification with the Corporation Commission. If all or a portion of the solar energy facility is to be located within the incorporated area of a municipality, a copy of the notification shall also be sent to the governing body of the municipality within twenty-four (24) hours of filing said notification with the Corporation Commission.

B. Within six (6) months of submitting the notification to the Corporation Commission as provided for in subsection A of this section, the owner of the solar energy facility shall cause a copy of the notification to be published in a newspaper of general circulation in the county or counties in which all or a portion of the solar energy facility is to be located. Proof of publication shall be submitted to the Corporation Commission.

C. Within six (6) months of submitting the notification to the Corporation Commission as provided in subsection A of this section, the owner of the solar energy facility shall cause a copy of the notification to be sent, by certified mail, to:

1. Any operator, as reflected in the records of the Corporation Commission, conducting oil and gas operations upon all or any part of the surface estate on which the solar energy developer intends to construct the solar energy facility;

2. Any operator, as reflected in the records of the Corporation Commission, of an unspaced unit or a unit created by order of the Corporation Commission, conducting oil and gas operations for a unit

where all or any part of the unit area is within the geographical boundaries of the surface estate on which the solar energy developer intends to construct the solar energy facility;

3. All lessees of oil and gas leases covering the mineral estate underlying any part of the tracts of land that are filed of record with the county clerk in the county where the tracts are located and whose primary term has not expired. This paragraph shall apply to tracts of land not described in paragraphs 1 and 2 of this subsection on which the solar energy developer intends to construct a solar energy facility;

4. Any owner of a working interest arising from an oil and gas lease, as reflected in the records of the Corporation Commission, of a unit created by order of the Corporation Commission, where all or any part of the unit area is within the geographical boundaries of the surface estate on which the solar energy developer intends to construct the solar energy facility; and

5. Any operator of a well permitted by the Corporation Commission for injection or disposal purposes, as reflected in the records of the Corporation Commission, where such well is located within the geographical boundaries of the surface estate on which the solar energy developer intends to construct the solar energy facility.

If the solar energy developer makes a search with reasonable diligence and the whereabouts of a party entitled to notice cannot be ascertained or the notice cannot be delivered, an affidavit attesting to such diligent search shall be submitted to the Corporation Commission.

D. Within sixty (60) days of publication of the notification in a newspaper of general circulation as provided for in subsection B of this section, the owner of the solar energy facility shall hold a public meeting. Notice of the public meeting shall be published in a newspaper of general circulation and submitted to the board of county commissioners in the county or counties in which all or a portion of the solar energy facility is to be located. The notice shall contain the place, date, and time of the public meeting. Proof of publication of the notice shall be submitted to the Corporation Commission. The public meeting shall be held in the county or in one of the counties in which all or a portion of the solar energy facility is to be located.

E. With regard to the surface estate upon which the owner of a solar energy facility intends to construct the facility, at least sixty (60) days before entering upon the surface estate for the purpose of commencement of construction, the owner shall provide written notice, by certified mail, of its intent to construct the solar energy facility to the parties described in subsection C of this section.

The notice shall contain a map or plat of the proposed location, with sufficient specificity to identify the solar energy facility to be located on the governmental section and the approximate date construction is proposed to commence. If the solar energy developer makes a search with reasonable diligence and the whereabouts of a party entitled to notice cannot be ascertained or the notice cannot be delivered, an affidavit attesting to such diligent search shall be submitted to the Corporation Commission. Within thirty (30) days of receiving such notice, any party described in subsection C of this section shall reciprocate, in writing by certified mail, the relevant site, operational, and infrastructure information sufficient to assist with the safe construction and operation of the solar energy facility. This information shall include American Land Title Association surveys, if available, and technical specifications for existing subsurface or surface improvements.

Any information provided by an oil and gas operator or solar energy developer pursuant to this subsection shall be confidential and proprietary. The parties shall:

1. Use such information solely for the purposes of this section;
2. Not disclose such information to any third party without the prior written consent of the disclosing party, except as required by law or order of a court of competent jurisdiction or the Corporation Commission; and
3. Upon written request of the disclosing party, return or destroy all such information and certify the same in writing.

The confidentiality obligations of this subsection shall not be limited by or contingent upon the terms of any landowner lease agreement or surface use agreement. Violation of this provision shall constitute grounds for the Corporation Commission to suspend or revoke a permit issued under this act, in addition to any other remedies available at law or in equity.

F. The owner of a solar energy facility shall not commence construction on the facility until the notification and public meeting requirements of this section have been satisfied. Upon the commencement of the sixty-day notice required under subsection E of this section, the owner shall notify the Corporation Commission that such notice has commenced and shall include an affirmation that all other notices and notifications required by this section have been properly provided.

If an owner of a solar energy facility fails to submit any information required by this section, the owner shall be subject to an administrative penalty not to exceed One Thousand Five Hundred Dollars (\$1,500.00) per day, per violation, as provided by law.

G. The provisions of this section shall only apply to facilities that commence construction after May 1, 2027, and shall not apply to any facilities that commenced construction before that date, including any subsequent maintenance, repairs, modifications, or other work on existing facilities.

SECTION 18. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 809.8 of Title 17, unless there is created a duplication in numbering, reads as follows:

A. When applicable, a solar energy developer shall submit site plans and fees for any new solar energy facility to the Office of the Oklahoma State Fire Marshal for review. Such site plans shall be submitted when the solar energy facility is sixty percent (60%) complete in design development. The site plans shall include an accurate representation of:

1. Photovoltaic modules;
2. Inverters;
3. Monitoring and control equipment;
4. Substations;
5. Collection lines;
6. Access roads;
7. Temporary construction areas;

8. Operation and maintenance facilities; and

9. Other relevant supporting infrastructure.

B. Review by the Office of the Oklahoma State Fire Marshal shall be limited to compliance with applicable fire and building safety codes, including:

1. The Oklahoma-adopted International Building Code, as codified at OAC 748:20-2-1; and

2. The 2018 Edition of the International Fire Code, as codified at OAC 748:20-4-1.

C. The Office of the Oklahoma State Fire Marshal or local authority having jurisdiction, where applicable, shall complete any review subject to this section as soon as practicable, but in no event later than thirty (30) calendar days following receipt of complete site plans and fees. In the event the Office of the Oklahoma State Fire Marshal or local authority having jurisdiction does not complete its review within thirty (30) calendar days, any applicable permits and certificates shall be deemed issued.

D. During the pendency of the review by the Office of the Oklahoma State Fire Marshal, the following on-site activities may proceed:

1. Timbering, clearing, and grubbing vegetation;

2. Civil grading and earthwork;

3. Installation of stormwater pollution prevention measures and best management practices;

4. Installation of laydown areas and substation concrete foundation pads, including rough grading and gravel;

5. Installation of racking systems, inverters, photovoltaic modules, low-voltage collection systems, and above-ground transmission poles;

6. Public road improvements, entrance installations, and service road construction;

7. Placement of construction trailers with temporary power, fiber connections, and portable sanitation facilities;

8. Sub-grade open trenching;

9. Installation of on-grade concrete foundations; and

10. Installation of structural columns and beams.

E. The Office of the Oklahoma State Fire Marshal may assess a plan review fee at a rate of six cents (\$0.06) per square foot of actual erected solar facilities, provided that the total fee shall not exceed Five Hundred Thousand Dollars (\$500,000.00) for any single solar energy facility. The amount of such fee shall have a reasonable connection to the work actually performed by the Office of the Oklahoma State Fire Marshal.

F. Of the fees collected pursuant to this section:

1. Seventy-five percent (75%) shall be distributed to the local fire department providing primary fire protection services to the jurisdiction where the facility is located, within sixty (60) days of receipt. Funds distributed pursuant to this paragraph shall be used solely for fire protection, fire prevention, inspections, training, or emergency response activities related to the facility; and

2. Twenty-five percent (25%) shall be distributed to the permit issuing authority, whether the Office of the Oklahoma State Fire Marshal or a recognized local authority having jurisdiction, if delegated.

G. If the Office of the Oklahoma State Fire Marshal delegates any site plan review, permitting, or similar authority over a solar energy facility to a recognized local authority having jurisdiction, fees and timing shall continue to conform the requirements of this section.

H. The provisions of this section shall only apply to solar energy facilities designed to provide electricity to the grid, as well as any utility-scale solar energy facility designed to deliver electricity directly from a generating facility to a single end-use customer.

SECTION 19. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 809.9 of Title 17, unless there is created a duplication in numbering, reads as follows:

A. In addition to complying with the provisions of this act, the owner of a solar energy facility shall comply with the provisions of the Commercial Solar Facility Decommissioning Act in accordance with Section 820 et seq. of Title 17 of the Oklahoma Statutes.

B. An owner shall submit evidence of financial assurance sufficient to secure the performance of its decommissioning obligations in accordance with the Commercial Solar Facility Decommissioning Act on or before the tenth year of operation of the facility and thereafter upon request by the Commission, but at least once every five (5) years for the life of the solar energy facility. The amount of such financial assurance shall be calculated in accordance with the Commercial Solar Facility Decommissioning Act, but shall not be less than one hundred twenty-five percent (125%) of the estimate of the total cost of decommissioning, less the salvage value of facility equipment and any portion of the value of such equipment pledged to secure outstanding debt.

SECTION 20. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 809.10 of Title 17, unless there is created a duplication in numbering, reads as follows:

The Oklahoma Corporation Commission shall have authority to promulgate rules as necessary to implement the provisions of the Oklahoma Solar Energy Development Act and to set fees necessary to perform the duties and responsibilities of the Commission pursuant to the act. The Oklahoma Corporation Commission shall have exclusive jurisdiction to enforce the provisions of this act that are within its authority.

SECTION 21. This act shall become effective July 1, 2026.

SECTION 22. It being immediately necessary for the preservation of the public peace, health or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.



Passed the House of Representatives the 25th day of March, 2026.

\_\_\_\_\_  
Presiding Officer of the House  
of Representatives

Passed the Senate the 29th day of April, 2026.

\_\_\_\_\_  
Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this \_\_\_\_\_  
day of \_\_\_\_\_, 20\_\_\_\_\_, at \_\_\_\_\_ o'clock \_\_\_\_\_ M.  
By: \_\_\_\_\_

Approved by the Governor of the State of Oklahoma this \_\_\_\_\_  
day of \_\_\_\_\_, 20\_\_\_\_\_, at \_\_\_\_\_ o'clock \_\_\_\_\_ M.

\_\_\_\_\_  
Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this \_\_\_\_\_  
day of \_\_\_\_\_, 20\_\_\_\_\_, at \_\_\_\_\_ o'clock \_\_\_\_\_ M.  
By: \_\_\_\_\_